

2:00 PM

LINE 1

24-CIV-04478 JANA GARCIA VS LAKEVIEW LODGE, INC.

JANA GARCIA
LAKEVIEW LODGE, INC.

ARLO G. URIARTE
ELENO NUNEZ GONZALEZ

MOTION FOR APPROVAL OF PAGA REPRESENTATIVE ACTION SETTLEMENT

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Jana Garcia's motion for approval of PAGA (Private Attorney General Act) settlement.

This is an individual action to recover penalties for wage and hour violations which includes a claim for penalties pursuant to PAGA. (Complaint, filed July 22, 2024, ¶¶ 2, 52-57.)

According to the motion, it is estimated that there are approximately 20 aggrieved employees who worked 941 pay periods. The proposed settlement amount is \$220,000. It is proposed that the settlement will provide a payment of \$97,957.91 to the California Labor and Workforce Development Agency (LWDA) (i.e., 75% of the \$130,610.55 Net Settlement Amount). The remaining \$32,652.64 shall be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; see *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“ ‘The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.’ ”]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Threshold Issues

While plaintiff states she will provide the settlement agreement to the LWDA, there is no proof of service in the file showing such service and the LWDA website shows no filing. The LWDA website also does not show that the complaint was submitted. Thus, plaintiff has not met the threshold requirements for approval. (Lab. Code, §§ 2699, subd. (s)(1), (s)(2).)

Further, there is no proposed notice to the class submitted. The court needs to review and approve the notice.

Potential Conflict Between Plaintiff and the Aggrieved Employees

On its face, there appears to be a conflict between the plaintiff, who settled her individual case for \$40,000, a little less than a quarter of the settlement for the other aggrieved employees. There likely are good reasons for plaintiff receiving substantially more than the other aggrieved employees who are recovering penalties and not compensation, but the motion provides no details to explain the disparity in settlements and the court may not make assumptions unsupported by the record. The only mention of the plaintiff's individual settlement is in footnote 1 on page 1 of the motion and paragraph 4 of the Declaration of Arlo Garcia Uriate. There are no details about when, why and how this settlement was reached. The only detail is that the settlement was for \$40,000. While there is some mention of a change of policy by defendant, which may account for a reason that plaintiff has higher damages than other aggrieved employees, there is no breakdown of the number of employees who worked from June 2023 (the beginning of the PAGA period) to June 2024, when changes were made. No explanation is provided about any unique claims that plaintiff had (and there are no such allegations in the complaint). In a PAGA lawsuit, the plaintiff does not just represent her individual claims but is a proxy of the State and the State is the real party in interest. (*Turrieta v. Lyft, Inc.*, *supra*, 16 Cal.5th at p. 682.) Based upon plaintiff's individual settlement, the court must question whether the PAGA settlement is fair and reasonable to the aggrieved employees and whether plaintiff and her counsel represented the interests of the State or plaintiff's own individual interests. The court assumes that further facts will explain and thus refute the court's concerns, but based upon the record presented here, the court cannot determine that the PAGA settlement is fair, reasonable, and adequate. These concerns carry-over to the cross-check on the attorneys' fees. For example, the pre-litigation investigation, without further explanation, appears to relate to plaintiff's individual claim since it was only at the informal document exchange that it appears that plaintiff's counsel obtained documents about other aggrieved employees. The court also notes that the motion does not provide any information about the reasonableness of the hourly rate for cases litigated in San Mateo County (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 and it appears to the court that work performed by Uriate could have been performed by attorneys with less experience and have a lower hourly rate.

The court sets a case management conference for April 20, 2027 at 9:30 a.m. in Department 4 with a joint statement due five court days before the conference.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 2

24-CIV-07133

GRACE COLLEEN DODD, ET AL. VS. THE ENSIGN GROUP, INC., ET AL.

GRACE COLLEEN DODD
THE ENSIGN GROUP, INC.

LESLEY ANN CLEMENT
JOHN L SUPPLE

PLAINTIFFS' MOTION TO COMPEL DEPOSITION OF DEFENDANT THE ENSIGN GROUP, INC.'S PERSON MOST QUALIFIED RE: CHANGE OF OWNERSHIP, PRODUCTION OF DOCUMENTS; AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Grace Colleen Dodd's motion for an order compelling Defendant The Ensign Group, Inc. (Ensign Group) to produce within 30 days its Person Most Qualified regarding Change of Ownership for deposition, pursuant to Plaintiffs' deposition notice, served on November 4, 2025, and to produce for inspection and copying all documents described in the deposition notice, under Code of Civil Procedure sections 2025.410, subdivisions (a), (b), and 2025.450(a), is GRANTED IN PART.

Defendants' objections to the declaration of Christopher Cherney are OVERRULED.

A. Background

The underlying action regards plaintiff's approximately two-month stay at defendants' care and treatment facility for rehabilitation following surgery for a broken right hip in the fall and winter of 2023. After undergoing subsequent surgeries following injuries sustained at defendants' facility, plaintiff passed away on May 26, 2024. (Comp. ¶¶70-79.)

Yet, plaintiff's theory of the case as shown by the allegations in the complaint and through this motion, including the declaration of Christopher Cherney appended to the Supplemental Declaration of Plaintiffs' Counsel Laraclay Parker filed August 28, 2026, is not simply that the defendants were negligent but that Ensign Group, as part of a corporate strategy, purchases nursing homes after conducting a financial analysis and then as they inform their investors achieve significant improvement quickly on key financial performance. (Comp. ¶ 25.)

The instant motion seeks an order compelling defendant Ensign Group (1) produce all responsive documents to the Requests detailed in the Notice of Motion and Separate Statement, (2) produce an appropriately qualified corporate representative for deposition within 30 days, and (3) issue monetary sanctions against Ensign in the amount of \$4,860 for plaintiffs' fees and costs in bringing this motion.

Defendant opposes the motion, contending that the subject matters and document requests in the PMQ Deposition seek information that is neither relevant nor reasonably calculated to lead to the
